

M/s Yadav Speller v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 August 2022 · WRIT - C No. 17033 of 2022 · **Writ disposed; clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

A writ seeking quashing of electricity recovery citations was disposed without any opinion on merits. The High Court granted liberty to file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, directed the distribution licensee to decide it after hearing, and stayed coercive recovery for eight weeks or until that decision, whichever was earlier.

FACTUAL SUMMARY

M/s Yadav Speller challenged two recovery citations of the power distribution corporation for meter connection no. 007753: one dated 16 October 2021 for Rs. 9,13,196 against the petitioner, and an earlier citation dated 10 July 2017 for Rs. 7,44,783 (due recovery shown as Rs. 37,239) issued to the petitioner's husband. The writ sought quashing of both citations and a restraint on coercive recovery. The licensee's counsel stated that an objection to the demand could be filed and would be decided within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

recovery-citation-objection-under-clause-6.5

HOLDING

Without expressing any opinion on merits, the writ challenging recovery citations was disposed of with liberty to submit an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks. If so submitted, the licensee was to decide it in accordance with law, expeditiously and preferably within the next four weeks, after reasonable opportunity of hearing. Coercive action on the impugned demand was stayed for eight weeks or until disposal of the objection, whichever was earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against recovery citations was not decided on merits; the petitioner was relegated to a clause 6.5 objection before the distribution licensee. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The dispute over recovery citations for the same connection was treated as a demand objection to be decided under paragraph 6.5 of the Supply Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECOVERY CITATIONS AND THE UNDERLYING ELECTRICITY DEMAND

The Court expressed no opinion on merits and remitted the dispute to clause 6.5. ¶ 1